Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1085
Claimant:	Brian Williams
Adjuster:	Darin Tyler

9-4-23 - Insured reports a left-turn collision at an intersection. Insured states they were turning left on a green arrow when the other vehicle proceeded straight through from the opposing lane. Scene photos requested. Liability appears disputed at this stage.

9-5-23 - Claimant has retained counsel. Attorney letter of representation received. All further contact to be routed through counsel. Claimant reports pain in the left knee following the impact and has been seen at urgent care. Mediacl authorization requested through counsel.

9-11-23 - Reviewed police report. Officer notes both drivers gave conflicting accounts of the signal phase. Witness statement obtained from a pedestrian at the corner, who states the oncoming vehicle entered the intersection after the signal changed. Liability position under review.

9-17-23 - Counsel's office requested a copy of the vehicle damage estimate and the insured's policy declarations page. Documents sent. Claimant's treating physician notes a knee strain with possible meniscus involvement. MRI ordered per records received. Reserve reviewed and adjusted upward for bodily injury exposure.

9-24-23 - Spoke with defense liaison regarding the claim status. Recommend holding ofefr pending MRI results and final medical records. Diary set for follow-up with counsel. Liability remains at roughly even split pedning review of the signal timing data and the witness interview.

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Recorded Statement

Claim number:	C-1085
Statement of:	Brian Williams
Taken by:	Darin Tyler
Date:	9-12-23

Q: Thanks for taking the time to talk with me today. This recorded statement is about the collision you were involved in. Do you understand that this call is being recorded?

A: Yes, I understand.

Q: Please state your full name for the record.

A: [Claimant name].

Q: Can you tell me where you were when the accident happened?

A: I was in Conroe, Texas, at an intersection on a main road. I was driving my sedan and turning left across the eastbound lanes.

Q: What was the traffic signal doing when you started your turn?

A: It was a green light for me, I'm fairly sure. There was a gap in the oncoming traffic, so I went when I thought it was clear.

Q: What happened next?

A: A pickup coming straight through the intersection hit the front passenger side of my car. I didn't see it coming until it was too late to stop.

Q: Were you wearing your seatbelt?

A: Yes, I was.

Q: Did the airbags deploy?

A: No, they didn't. The impact spun the car a bit and pushed me against the door.

Q: Did you get checked out by anyone after the accident?

A: Yes. An ambulance took me to the emergency room. My left knee hit the dashboard and it's been swollen and painful since. They took X-rays and told me to follow up with an orthopedic doctor.

Q: Are you currently receiving treatment for your knee?

A: I have an appointment scheduled, and I'm using crutches and ice at home for now.

Q: Is there anything else you think I should know about how the accident happened?

A: Only that I was being careful and I believe the other driver was going too fast for the intersection.

Q: Thank you. Is there anything you'd like to add or correct in what you've told me?

A: No, that covers it. Thank you.